Total Wine & More
Westlaw Research and Settlement Guide

Prepared November 14, 2026, for Brendan Ngehsi Newanforbi. Private research memo. Not a filing, and not for service or transmission to anyone.

Read this first. I could not open court dockets or government pages in the session that produced this guide. Every outside fact here came from a web search that returned a source link and a summary of the page. Treat each case entry as a lead to confirm on Westlaw, not as a verified citation. The whole point of this guide is to let you do that confirmation quickly.

DOC read directly from your offer packet or the First Advantage notice. SOURCED reported at a court, agency, or reputable news page. SINGLE one source only. UNVERIFIED not confirmed or sources conflict.

1. The short answer on how they settle

The public record of Total Wine settlements is thin: five resolved matters, and only one of them is an employment case in California. Individual employment settlements are confidential and none surfaced. What the five matters show is consistent:

- **They settle after losing a procedural round, not before.** In each matter the company contested first (demurrer, petition to quash, public defiance, a dispute over whether the law applied) and resolved only when the next step was a ruling or an enforcement order.
- **No admission, every time.** Seattle and Connecticut both recite no finding of liability. The FTC agreement was kept off the public docket entirely.
- **They pay to end aggregate exposure and fight to keep it from forming.** They paid on a California wage class and a Seattle group claim. In Washington they told the court a 20,000-person class would be "ruinous" and opposed certification.
- **They do not settle to avoid making law.** They took a licensing case to the U.S. Supreme Court, a pricing case to the Second Circuit and the Massachusetts high court, and a pay-posting case to the Washington Supreme Court.
- **Single-plaintiff cases are defended on causation.** The one reported individual case (*Kasmir*) went to summary judgment and appeal, and the employer won.

These are my inferences from a small sample. Section 4 has the data and Section 5 shows where the missing settlement data lives.

2. Case checklist to run on Westlaw

Run each docket number in Westlaw Dockets, then KeyCite anything with a reporter cite. "Pull" lists the documents that matter.

Case	Court and number	What it is	Pull
Saucedo v. California Fine Wine & Spirits LLC SOURCED	N.D. Cal. 3:26-cv-00318. Began in Contra Costa Superior Court, filed Dec. 8, 2025.	FEHA: accommodation, harassment, forced resignation. Names two managers, the Trones, SPT Investment LLC, and family trusts.	Order dated about Oct. 20, 2026. Notice of removal. Any motion to compel arbitration and the agreement attached. Remand briefing. Defense counsel. **Top priority: same district as you.**
Potter v. California Fine Wine & Spirits LLC SOURCED	S.D. Cal. 3:25-cv-03286-AJB-MSB. Removed Nov. 24, 2025, from San Diego Superior Court.	Wage-and-hour class and PAGA. Lead case after consolidation about May 4, 2026.	Notice of removal (states who the LLC's members are and where they are citizens). Corporate disclosure statement. Consolidation order. Any arbitration motion. Any notice of settlement or mediation.
Nguyen v. California Fine Wine and Spirits, LLC UNVERIFIED numbers	S.D. Cal. 3:26-cv-02443 or 3:26-cv-02440. From C.D. Cal. 2:26-cv-01445. From L.A. Superior Court 25STCV31920.	Wage-and-hour and PAGA. Consolidated into *Potter*.	Sort out which numbers are real and whether there are two Nguyen cases. Remand ruling (defense opposition filed Feb. 2, 2026).
Blackshear v. California Fine Wine & Spirits LLC SOURCED	Sacramento Superior Court 34-2018-00245842-CU-OE-GDS.	Wage-and-hour class and PAGA settlement. Class period Dec. 5, 2014, to Feb. 15, 2020. Final approval hearing Dec. 1, 2020.	Settlement agreement, preliminary and final approval orders, fee order, mediator's name, PAGA allocation, release language. **The only public California employment settlement.**
Frye v. California Fine Wine & Spirits, LLC SINGLE	L.A. Superior Court, filed Feb. 17, 2022. Number not found.	Unruh Act claim by customers. Not employment.	Demurrer ruling and how the case ended.
Biosphere Watch Group v. California Fine Wine & Spirits LLC SOURCED	Marin Superior Court. Attorney General notice no. 2024-02883.	Proposition 65, THC beverages.	Consent judgment or settlement report, with penalty and fee split.
Branson v. Washington Fine Wine & Spirits, LLC SOURCED	W.D. Wash. 2:24-cv-00589-JHC. Wash. Supreme Court no. 103394-0 (decided Sept. 4, 2025).	Pay-posting class by job applicants.	Class certification briefing and ruling (2026). Any settlement. Defense counsel. Trial was reset to June 1, 2027.
Kasmir v. Retail Services & Systems, Inc. SOURCED	Appellate Court of Maryland, No. 1778, Sept. Term 2023. 264 Md. App. 370, 330 A.3d 755 (2025).	Retaliation. Summary judgment for employer affirmed.	KeyCite for later history. Read how the court describes the company's structure and who makes termination decisions.
FTC v. Retail Services & Systems, Inc. SOURCED	E.D. Va. 1:23-mc-00028. Petition filed Oct. 20, 2023.	Subpoena enforcement. Settled Dec. 18, 2023.	Joint motion for stay. Terms were not filed publicly.
Tennessee Wine & Spirits Retailers Ass'n v. Thomas SOURCED	U.S. No. 18-96. 139 S. Ct. 2449 (2019).	Total Wine's Tennessee company won 7 to 2.	Background only.

3. Westlaw search plan

Type the queries exactly as shown. The `adv:` prefix forces a terms-and-connectors search. A space between terms means OR, `&` means AND, `/s` same sentence, `/p` same paragraph, `!` is a root expander, and quotation marks hold a phrase. If a field code is rejected in a given content type, use that content type's Advanced Search template and put the same terms in the Party Name, Attorney, or Docket Number box.

Step 1. Dockets (find every case, including ones the web missed)

Content type: **Dockets**, then All Federal and California. Use the Party Name box in the template, one run per name:

```
"California Fine Wine"
"Retail Services & Systems"
"Total Wine"
"RSSI Management"
"SPT Investment"
"Fine Wine & Spirits" (then narrow by the Trone-related states you care about)
```

Filter by Nature of Suit (Labor, Civil Rights: Employment, Consumer Credit for background-check cases) and by date, last 10 years. Run the same names in State dockets for Santa Clara, Alameda, Contra Costa, San Francisco, Sacramento, Los Angeles, and San Diego.

Step 2. Cases and trial court orders

Content types: **Cases** and **Trial Court Orders**, jurisdiction California state and federal first, then All States and All Federal.

```
adv: TI("California Fine Wine" "Total Wine" "Retail Services & Systems" "Fine Wine &
Spirits")
```

```
adv: ("Total Wine" "California Fine Wine" "Retail Services & Systems") /p (arbitrat! /s
(compel! enforc! unconscionab! delegat!))
```

```
adv: ("Total Wine" "Fine Wine & Spirits") & (FEHA "Title VII" discriminat! retaliat!
"wrongful termination" accommodat!)
```

```
adv: ("Total Wine" "Fine Wine & Spirits" "Retail Services & Systems") & ("Fair Credit
Reporting" FCRA ICRAA "background check" "consumer report" "Fair Chance")
```

```
adv: ("Total Wine" "California Fine Wine") & (remand! /p (divers! citizen! "fraudulent
joinder" "sham defendant"))
```

Step 3. The arbitration agreement itself

Content type: **Trial Court Documents** (motions, memoranda, declarations, exhibits). You are looking for any motion to compel that attaches the agreement, and the HR declaration describing how it is signed.

```
adv: ("Total Wine" "California Fine Wine") & "Mutual Arbitration Agreement"
```

```
adv: ("Total Wine" "Fine Wine & Spirits") & (JAMS /p arbitrat!) & (Workday onboard!
"electronic signature" DocuSign)
```

Then check the clauses in your own agreement against current law. Start with these and KeyCite each one:

```
Ramirez v. Charter Communications, Inc., 16 Cal.5th 478 (2024)
Armendariz v. Foundation Health Psychcare Services, Inc., 24 Cal.4th 83 (2000)
Rent-A-Center, West, Inc. v. Jackson, 561 U.S. 63 (2010)
Chamber of Commerce v. Bonta, 62 F.4th 473 (9th Cir. 2023)
```

I gave these four citations from memory. Confirm each cite and its current treatment in KeyCite before relying on it.

```
adv: unconscionab! /p (arbitrat! /s (attorney /3 fee!) /s (court /s (fil! bring!
brought))) & employ! & DA(aft 07-15-2024)
```

```
adv: arbitrat! /p (waiv! /s (monetary relief recover!) /s (EEOC "administrative charge"
DFEH CRD)) /p unconscionab!
```

Step 4. Settlements and verdicts

Content type: **Jury Verdicts & Settlements**, All States.

```
adv: "Total Wine" "California Fine Wine" "Retail Services & Systems" "Fine Wine & Spirits"
```

Then in **Trial Court Orders** and **Trial Court Documents**:

```
adv: ("Total Wine" "Fine Wine & Spirits" "California Fine Wine") & ((preliminary final) /3
approv! /s settlement)
```

```
adv: ("Total Wine" "Fine Wine & Spirits") & (FLSA "Fair Labor Standards") & (approv! /s
settlement)
```

```
adv: ("Total Wine" "California Fine Wine") & (PAGA "Private Attorneys General") &
(settlement /p (LWDA penalt! allocat!))
```

Content type: **Arbitration Materials** (awards). Employment awards from JAMS and AAA are sometimes reported.

```
adv: "Total Wine" "Fine Wine & Spirits" "Retail Services & Systems"
```

Step 5. Litigation Analytics (the fastest read on behavior)

- **Company:** search California Fine Wine & Spirits, LLC and Retail Services & Systems, Inc. Record case counts by type, how cases ended (dismissed, settled, judgment), time to resolution, and which firms appear.
- **Law firm and attorney:** Jackson Lewis P.C.; Karin Cogbill, Sean Bothamley, Andres Antuna. Look at motion outcomes for motions to compel arbitration, motions to remand, and summary judgment. Also run Michael J. Nader (defense counsel in *Blackshear*).
- **Judge:** once a judge is assigned in any case of yours, pull that judge's grant rate on motions to compel arbitration in employment cases.

Step 6. Counsel and company background

```
adv: AT("Karin Cogbill" "Sean Bothamley" "Andres Antuna") & arbitrat!
```

Company Investigator: run California Fine Wine & Spirits, LLC; Retail Services & Systems, Inc.; RSSI Management Inc; SPT Investment, LLC. Capture registered agents, officers, and filing dates for California, Maryland, and Delaware.

4. Settlement record: everything public I could find

Matter	Type	Amount	What they did first	Terms worth noting
Blackshear, Sacramento Superior Court, 2018 to 2020 SOURCED	California wage class and PAGA	$1,800,000 reported, one-third to class counsel SINGLE	Litigated about two years. A contested ruling issued May 21, 2019, before settlement.	Covers all non-exempt California employees for more than five years. Class counsel Blumenthal Nordrehaug. Administrator ILYM Group. Approval order not seen.
Seattle Office of Labor Standards, Oct. 4, 2021 SOURCED	City agency, hazard pay	$333,019.57 to 101 workers	Disputed that the ordinance applied to a liquor retailer at all.	Voluntary settlement, no finding of liability, no ruling on coverage. Works out to about $3,297 per worker.
Connecticut Dept. of Consumer Protection, Aug. 2016 SOURCED	State regulator, pricing	$37,500	Advertised below the legal minimum price publicly, then sued the state over the law.	Offer of compromise, no admission. Kept litigating the law afterward and lost at the Second Circuit.
FTC subpoena enforcement, E.D. Va., Dec. 18, 2023 SOURCED	Federal agency	None (compliance)	Refused for months. Lost a petition to quash before the Commission on May 19, 2023. Opposed the court petition.	Settled before the judge ruled. Terms not public. Joint request for a 120-day stay to carry it out.
Massachusetts ABCC, 2017 onward SOURCED	State regulator, pricing	License suspensions	Sued the regulator and won in superior court in 2017.	Not a settlement. The state's highest court later reversed in the regulator's favor.
Branson, W.D. Wash. SOURCED	Applicant class	Open	Lost the certified question 6 to 3 at the Washington Supreme Court. Opposed class certification in June 2026.	No settlement found. Watch this one: it is the live test of whether they pay or keep fighting when exposure is per-person statutory damages.
Kasmir, Maryland, 2025 SOURCED	Single-plaintiff retaliation	None	Summary judgment, then defended the appeal.	No settlement. Won on lack of proof that decisionmakers knew of the complaint.

Correction to the earlier report. I wrote that Total Wine "won" the Massachusetts pricing fight in 2017. A later search result reports that the Supreme Judicial Court overturned that win. I have corrected the repository file.

What this does and does not tell you

- **Timing.** In the four matters with a known sequence, resolution came after an adverse step or just before a ruling. Expect a first response that concedes nothing, and expect movement around mediation set after the pleadings are settled or just before a dispositive hearing.

- **Form.** Expect no-admission language and a confidentiality demand. The company kept even a federal agency agreement off the docket.
- **What moves them.** Exposure that multiplies across people (class, PAGA, per-applicant statutory damages) and rulings that would bind them elsewhere. A single-plaintiff claim sent to private arbitration removes both. That is why the arbitration agreement matters more to your settlement position than any other fact here.
- **Money.** The *Blackshear* figure is a class total and says nothing about individual case value. I found no individual settlement amount, no verdict, and no arbitration award. Do not anchor on any number in this guide.
- **Sample size.** Seven matters across ten years. This is a sketch, and Westlaw should fill it in or contradict it.

5. Where the missing settlement data lives

Source	What you get and how
Sacramento Superior Court file, *Blackshear*	The settlement agreement, approval orders, and fee order. Confirms the amount, the mediator, the PAGA split, and the release. Available through the court's public portal or the clerk.
California LWDA PAGA case search	Every PAGA notice naming the employer since 2016, with the plaintiff firm and filing date, and court-approved PAGA settlements. Search "California Fine Wine" on the Department of Industrial Relations PAGA search page.
S.D. Cal. docket, *Potter*	Watch for a notice of settlement, an ADR or mediation order, or a motion for preliminary approval. Class settlements require court approval, so the terms will be public.
W.D. Wash. docket, *Branson*	Class certification ruling and anything after it.
N.D. Cal. docket, *Saucedo*	ADR certification and any referral to the court's mediation or early neutral evaluation program show how they handle an individual FEHA case in your district.
Federal wage cases in other states	Settlements of federal overtime claims usually need court approval, so amounts appear in approval orders. Use the Step 4 FLSA query across All Federal.
Westlaw Jury Verdicts & Settlements and Arbitration Materials	The only place individual amounts might surface. Expect few hits.
Attorney General Proposition 65 database	Settlement reports list penalty and fee amounts. Search notice numbers 2024-02883 and the Jan. 31, 2019, notice to Retail Services & Systems.
California Civil Rights Department records request	Complaints naming the employer and how they closed, including agency mediation.
Plaintiff-side counsel	Lawyers who have handled cases against this employer know the pattern firsthand: Blumenthal Nordrehaug (*Blackshear*) and counsel of record in *Potter* and *Saucedo*, once you have their names from the dockets.

6. Research log

Fill this in as you go so each finding has a source you can cite later.

Case and number	Date resolved	How it ended	Amount, if public	Stage when resolved	Arbitration motion? Ruling?

7. Sources

Potter docket: dockets.justia.com/docket/california/casdce/3:2025cv03286/835789
Potter consolidation: news.bloomberglaw.com/daily-labor-report/case-wage-hour-california-class-actions-s-d-cal-6
Nguyen dockets: dockets.justia.com/docket/california/casdce/3:2026cv02443/852133 and dockets.justia.com/docket/california/cacdce/2:2026cv01445/1006395
Saucedo: govinfo.gov/app/details/USCOURTS-cand-3_26-cv-00318 and law.com/radar/card/ca-contracostacounty-655881-saucedo-v-california-fine-wine-spirits-llc/
Blackshear: cawineclassactionsettlement.com and trellis.law/ruling/34-2018-00245842-CU-OE-GDS/ (May 21, 2019 ruling)
Blackshear amount: cptgroupcaseinfo.com/WestCovinaCorporateFitnessSettlement/Declaration%20of%20Kyle%20Nordrehaug.pdf
Frye: unicourt.com/case/ca-la23-steve-frye-et-al-vs-california-fine-wine-spirits-llc-et-al-810805
Proposition 65: oag.ca.gov/system/files/prop65/notices/2024-02883.pdf and oag.ca.gov/system/files/prop65/complaints/2024-02883C9512.pdf
Branson: courts.wa.gov/opinions/pdf/1033940.pdf; courtlistener.com/docket/68482936/branson-v-washington-fine-wine-spirits-llc/; law360.com/employment-authority/articles/2485985
Kasmir: mdcourts.gov/data/opinions/cosa/2025/1778s23.pdf
Seattle: news.seattle.gov/2021/10/04/office-of-labor-standards-reaches-settlement-with-total-wine-more-for-alleged-violations-of-the-grocery-employee-hazard-pay-ordinance/
Connecticut: ctpost.com/local/article/Liquor-insurrection-ends-Total-Wine-will-pay-9197670.php and hartfordbusiness.com/article/liquor-retailer-settles-with-ct-after-flouting-pricing-law/
Connecticut appeal: natlawreview.com/article/second-circuit-rejects-total-wine-challenge-connecticut-pricing-laws
Massachusetts: brewbound.com/news/massachusetts-supreme-judicial-court-overturns-total-wine-pricing-victory/
FTC: ftc.gov/legal-library/browse/cases-proceedings/retail-services-systems-inc-dba-total-wine-more-ftc-v; brewbound.com/news/ftc-and-

total-wine-agree-on-settlement/; wlf.org/wp-content/uploads/2024/01/012624Snyder_LOL.pdf
Tennessee Wine: faegredrinker.com/en/insights/publications/2019/6/supreme-court-decides-tennessee-wine-and-spirits-retailers-association-v-thomas
Defense counsel: jacksonlewis.com/people/sean-bothamley; jacksonlewis.com/people/andres-antuna; apps.calbar.ca.gov/attorney/Licensee/Detail/244606